PARENTING PLAN

(DIVORCE WITH CHILDREN)
IN THE STATE OF ILLINOIS, CIRCUIT COURT

Check the appropriate box

☐ Petitioner's Suggested Parenting Plan
☐ Respondent's Suggested Parenting Plan
☐ Agreed Parenting Plan
☐ Court's Parenting Plan

COUNTY:_____
County Where You Are Filing the Case

PETITIONER: _____
Who started the case. *First, Middle, and Last Name*

RESPONDENT: _____
Who the case was filed against. *First, Middle, and Last Name*

_____
Case Number

Do not complete **1B** if Petitioner's contact information is protected because of domestic violence or abuse.
Do not complete **2B** if Respondent's information is protected because of domestic violence or abuse.

_____ _____

1. PETITIONER

The person who is starting the case by making a formal request to the judge. If any of this information changes, you must notify the Respondent.

A. Petitioner's name is: _____.
First, Middle, and Last Name

B. Petitioner's current address is: _____.
Street, Apt. #, City, State, Zip Code

C. Petitioner's phone number is: _____.

D. Petitioner's email is: _____.

E. Petitioner is employed:

☐ Yes ☐ No

Petitioner is **employed by**: _____.
Employer's name

Employer's address: _____.
Street, Apt. #, City, State, Zip Code

Employer's phone number is: _____.



2. RESPONDENT

The person who the Petition is filed against. If any of this information changes, you must notify the Petitioner.

A. Respondent's name is: _____.
First, Middle, and Last Name

B. Respondent's current address is: _____.
Street, Apt. #, City, State, Zip Code

C. Respondent's phone number is: _____.

D. Respondent's email is: _____.

E. Respondent is employed:

☐ Yes ☐ No

Respondent is **employed by:** _____.
Employer's name

Employer's address: _____.
Street, Apt. #, City, State, Zip Code

Employer's phone number is: _____.

3. MUST PROVIDE NOTICE OF MOVE

Both parents must provide each other notice if they plan to move, regardless of distance.

If a **parent plans to move**, they must give the other parent at least 60 days' notice, or notice as soon as possible of

(1) the intended move date; and

(2) the new address unless the address is protected because of domestic violence or abuse.



4. PARENTING PLAN FOR THESE CHILDREN

Only list minor children born to or adopted by the parents.

Name of child #1: _____ Age _____
First, Middle, and Last Name

Name of child #2: _____ Age _____
First, Middle, and Last Name

Name of child #3: _____ Age _____
First, Middle, and Last Name

☐ I have **more than 3 children** and have listed other children on the attached *Additional Children* form.



5. RIGHTS & RESPONSIBILITIES OF THE PARENTS

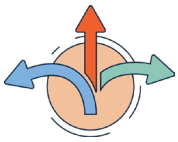
This is what each parent will do when the children are with them.

A. Make day-to-day decisions for the children when they have them, such as routine discipline, minor medical treatment, curfew, chores, and hygiene.

B. Give the other parent the name, address, and telephone number of any health care provider for the children.

C. Have access to the children's school records, childcare information, extracurricular activity schedules, and medical, dental, and mental health records unless access is denied by the judge.

D. Notify the other parent as soon as possible of emergencies, health care, travel plans, or other significant child-related issues.



6. SIGNIFICANT DECISION MAKING

Check only one option for each category.

A. Education decisions (includes choice of schools and tutors) will be made by:

☐ Both Parents ☐ Petitioner Only ☐ Respondent Only

B. Health decisions (includes medical, dental, and psychological decisions) will be made by:

☐ Both Parents ☐ Petitioner Only ☐ Respondent Only

C. Religious decisions will be made by:

☐ Both Parents ☐ Petitioner Only ☐ Respondent Only

D. Extracurricular or recreational activities decisions will be made by:

☐ Both Parents ☐ Petitioner Only ☐ Respondent Only



7. PARENTING TIME SCHEDULE

Use the following chart to make a schedule showing when each parent will have the children. A parent's time with the children will be noted by their initials.

The schedule below has each day separated into one-hour blocks, except for overnights, which begin at 9:00 PM and end at 8:00 AM the next day.

If the schedule will be the same every week, only fill in one schedule. If there will be two schedules that alternate every other week, fill in two schedules.

Note: If both parents have the same initials, choose another way of identifying each parent.

Parent Name: _____ Initials: _____
First, Middle, and Last Name

Parent Name: _____ Initials: _____
First, Middle, and Last Name

WEEKLY PARENTING TIME SCHEDULE

Use your name or the initials you indicated next to your name on the bottom of page 3 in the schedule below to show which parent has the children each day at each time listed.

If there will be more than two weekly schedules, fill in more schedules on the *Additional Parenting Time* form and include it with this *Parenting Plan*.

Week 1 Schedule: Week 1 begins on: _____
Date (Month, Day, Year)

Start time	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday
8 AM							
9 AM							
10 AM							
11 AM							
Noon							
1 PM							
2 PM							
3 PM							
4 PM							
5 PM							
6 PM							
7 PM							
8 PM							
9 PM - Overnight							

Week 2 Schedule:

Start time	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday
8 AM							
9 AM							
10 AM							
11 AM							
Noon							
1 PM							
2 PM							
3 PM							
4 PM							
5 PM							
6 PM							
7 PM							
8 PM							
9 PM - Overnight							

HOLIDAY PARENTING TIME SCHEDULE

Each year, holidays may fall during school breaks, causing a conflict.
When a conflict happens, the priority will be:

1st Priority: Holiday Schedule; **2nd** Priority: School Break Schedule; **3rd** Priority: Regular Weekly Schedule

For example, when Christmas Eve falls within your winter break, but it is the other parent's turn to have Christmas Eve, the other parent will get their time on Christmas Eve, because the Holiday schedule has 1st Priority.

Holiday Schedule (check only one):

☐ The holidays will be divided between the parents as follows:

- In even-numbered years, Petitioner will have the minor children on Group A holidays and Respondent will have the minor children on Group B holidays.
- In odd-numbered years, Petitioner will have the minor children on Group B holidays and Respondent will have the minor children on Group A holidays.

Group A Holidays	Group B Holidays
Thanksgiving Day	4th of July
Christmas Eve	Labor Day
New Year's Eve	Christmas Day

☐ The parents will divide holidays as follows (Use your names or the initials for each parent to show which parent has the children in even and odd years for each holiday):

New Year's Day	Mother's Day	Memorial Day	Father's Day
ODD:	ODD:	ODD:	ODD:
EVEN:	EVEN:	EVEN:	EVEN:
Start time:	Start time:	Start time:	Start time:
End time:	End time:	End time:	End time:

July 4	Labor Day	Halloween	Thanksgiving
ODD:	ODD:	ODD:	ODD:
EVEN:	EVEN:	EVEN:	EVEN:
Start time:	Start time:	Start time:	Start time:
End time:	End time:	End time:	End time:

Christmas Eve	Christmas Day	New Year's Eve	Other:
ODD:	ODD:	ODD:	ODD:
EVEN:	EVEN:	EVEN:	EVEN:
Start time:	Start time:	Start time:	Start time:
End time:	End time:	End time:	End time:

Other:	Other:	Other:	Other:
ODD:	ODD:	ODD:	ODD:
EVEN:	EVEN:	EVEN:	EVEN:
Start time:	Start time:	Start time:	Start time:
End time:	End time:	End time:	End time:

SCHOOL BREAKS PARENTING TIME SCHEDULE

Use the initials for each parent in the schedule below to show which parent has the children for school breaks in even and odd years unless there will not be a special schedule for breaks. You can specify the beginning and end day and time.

School Spring Break

☐ No spring break schedule *(follow the regular parenting schedule)*

☐ _____ will have the entire spring break in even-number years and _____ will have the entire spring break in odd-numbered years. Spring break starts at 9am the day after school dismissal and ends at 5pm the day before school starts again.

☐ Other:

Start day/time: _____ End day/time: _____

School Summer Break

☐ No summer break schedule *(follow the regular parenting schedule)*

☐ Each parent will have 2 non-consecutive weeks in the summer.

Each parent will notify the other in writing by April 1st each year of the weeks they wish to have summer parenting time.

_____ will have first choice of dates in even-numbered years and _____ will have first choice in odd-numbered years.

☐ Other:

Start day/time: _____ End day/time: _____

School Winter Break

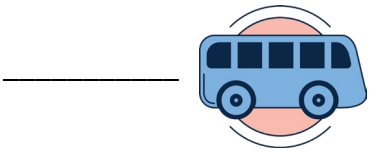
☐ No winter break schedule *(follow the regular parenting schedule)*

☐ _____ will have the first half of winter break in even-numbered years and _____ will have the first half of winter break in odd-numbered years. School Winter Break begins at 9am the day after school dismissal and ends at 5 pm the day before school starts again.

☐ Other:

Start day/time: _____ End day/time: _____

☐ More parenting time information is on the attached ***Additional Parenting Time*** **form**.



8. TRANSPORTATION OF CHILDREN

*Select **only one** of these options for how the children will be transported for parenting time.*

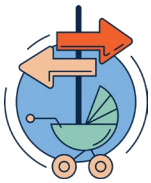
☐ Petitioner will provide all transportation.

☐ Respondent will provide all transportation.

☐ Each parent will pick up the children at the start of their parenting time.

☐ Each parent will drop off the children at the end of their parenting time.

☐ Other:



9. EXCHANGE OF CHILDREN

Select one of these options for where the children will be picked up and dropped off.

☐ Drop off and pick up of the children be at Petitioner's and Respondent's homes unless both parties agree in advance to a different meeting place.

☐ Drop off and pick up will take place at _____
Location of Exchange

_____.
Address & City of Exchange



10. FIRST REFUSAL FOR CHILDCARE

Decide whether a parent will notify the other parent of childcare needs and allow them the first opportunity to provide care.

Is there a right of first refusal for childcare?

☐ Yes ☐ No

If yes, each parent must offer the other a first right of refusal as follows.

- If a parent needs childcare for a period of 24 hours or more during their time with the children, they must give the other parent the option to care for the children before finding other childcare.
- As soon as the need for childcare is known, the parent in need of childcare will contact the other parent.
- The parent offered the right to care for the children must accept the offer within 2 hours. If they do not, the parent needing childcare may use another caregiver.
- Transportation of the children is the same as for other parenting time.



11. COMMUNICATION

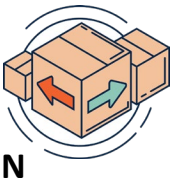
Electronic communication between the children and the other parent must not be unreasonably monitored or interrupted. Electronic communication includes telephone, e-mail, text, video, etc.

Select one option for when the children will communicate with the parent they are not with.

☐ Anytime

☐ Every day between _____ ☐ a.m. ☐ p.m. and _____ ☐ a.m. ☐ p.m.
Time *Time*

☐ Other:



12. RELOCATION OF MINOR CHILDREN

Relocation is when a parent seeks to move with children for distances of over 25 or 50 miles (depending on the county where they live).

A. If a parent with the most parenting time or equal parenting time wishes to move with the children, they must get the **agreement of the other parent or permission from the judge** when:
- The children's primary home is in Cook, DuPage, Kane, Lake, McHenry, or Will County and the move is within Illinois but more than 25 miles away from their current home; or
- The children's primary home is in any other county in Illinois and the move is within Illinois but more than 50 miles away from their current home; or
- The move is outside of Illinois and more than 25 miles from the children's primary home.

B. The parent asking to move with the children must provide **written notice** to the other parent. The notice must:
- Be given at least 60 days before the move unless that is impossible. If impossible, the notice must be given at the earliest date possible; and
- State the date the parent plans to move; and
- State whether the move is permanent or for a specific time period; and
- State the new address, if known, unless the address is protected because of domestic violence or abuse.

C. Agreement
- **No change is needed for parenting time -** If the parents agree on the move and no change is needed to the parenting time schedule, both parties will sign the notices provided about the move and file it with the court. No court appearance is needed.
- **Changes in parenting time are needed -** If the other parent agrees with the move but changes need to be made to the parenting time schedule, and the parents are in agreement about the changes to the parenting time schedule, the moving parent must:
  - Have the other parent sign the notice provided about the move;
  - File the signed notice with the court; and
  - File an updated *Parenting Plan* with the court. The court does not need to approve the move but the court must approve the changes to the *Parenting Plan*.

D. Partial agreement
- If the other parent agrees with the move, but both parents cannot agree on changes to the *Parenting Plan*, the moving parent must:
  - Have the other parent sign the notice provided about the move;
  - File the signed notice with the court; and
  - Follow the Handling Conflicts process set out below to try to reach an agreement with the other parent about changes to the parenting time schedule.
- If no agreement can be reached after completing the Handling Conflicts process, file a petition to modify the parenting time schedule with the court.

E. No agreement
- If the other parent does not agree with the move, the parent relocating must:
  - Follow the Handling Conflicts process set out below to try to reach an agreement with the other parent; and
  - If no agreement can be reached after completing the Handling Conflicts process, file a petition with the court asking for permission to move.



13. CUSTODY & RESIDENCE FOR OTHER PURPOSES

Designation of Children's Custody and Residence for other purposes.

A. Who has the most parenting time with the children? This designation will not affect parents' rights and responsibilities under the *Parenting Plan*.

☐ Petitioner ☐ Respondent

B. Whose home is the children's residential address (for school enrollment purposes only)?

☐ Petitioner ☐ Respondent



14. CHANGES TO THIS PARENTING PLAN

If a parent wants to change this *Parenting Plan*, they will talk to the other parent. The parents will try to reach an agreement on their own.

A. If the parents agree to a change, and the change is:

- A one-time or short-term change, then they will make the change without filing an agreement with the court.
- A long-term or permanent change, then they will draft and file a new *Parenting Plan* with the court.

B. If the parents do not agree, then they will:

- Follow the Handling Conflict section below to try to reach an agreement about changes to the *Parenting Plan*. If an agreement is reached, follow the steps in 15.
- If the parents still don't agree after going through the Handling Conflicts process, the parent who wants the change must file a petition with the court asking for changes to this *Parenting Plan*.
- This *Parenting Plan* will be followed until the parents complete the Handling Conflicts process and agree to a new plan or a new *Parenting Plan* is approved by the court.



15. HANDLING CONFLICTS (MEDIATION)

If a parent wishes to change this Parenting Plan or feels the other parent is not following this Parenting Plan, the parents will talk and try to come to an agreement on their own.

If an agreement cannot be reached, parents will seek help from a mediator:

☐ Mediation is required on all issues because parents have joint decision making:
Parents must first try to come to an agreement through mediation.

- Both parents must cooperate in scheduling and participating in mediation
- Both parents must split the cost of mediation equally unless otherwise ordered by the court

If mediation is unsuccessful, a parent must file a petition to modify this *Parenting Plan* or a petition to enforce this *Parenting Plan* with the court.

Emergencies: In an emergency situation, a parent may file a petition with the court to get an immediate resolution without first going through mediation.

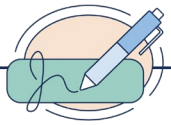
☐ Mediation is not required on all issues because:

☐ One parent has all significant decision-making responsibility.

☐ There is a history of domestic violence between the parties.

☐ Other reason:

A parent must file a petition to change this *Parenting Plan* or a petition to enforce this *Parenting Plan* with the court.



SIGN & APPROVE

Sign your name below to show you agree.

Petitioner's Signature: _____

Respondent's Signature: _____

ENTERED:

Judge _____ Date _____